

## CONFIDENTIALITY AGREEMENT (NON-DISCLOSURE AGREEMENT — NDA)

**Date: 20-11-25**

Between:

### **(A) TIGER PLANT MINING (PTY) LTD,**

a company incorporated under the laws of South Africa,  
RUT/ID 2015/238313/07,  
with registered office at Fraaiuitsig Farm, Matatiele, Eastern Cape,  
represented by Nagesh Moothilal  
(hereinafter, the “Disclosing Party”).

### **(B) Miner Global Connect SpA (MGC),**

a company incorporated under the laws of Chile,  
RUT 78.264.736-9,  
registered office at Monjitas #513, office 11, Santiago – Chile,  
represented by Robinson Sixto Godoy Cuchacovich, CEO,  
(hereinafter, the “Receiver” or “MGC”).

Collectively, the “**Parties.**”

## **1. BACKGROUND AND PURPOSE**

- 1.1. The Parties wish to hold discussions and evaluate a potential commercial and/or representation relationship relating to the marketing of minerals (the “**Purpose**”).
- 1.2. The Disclosing Party may provide confidential technical, commercial and financial information, which shall be governed by this Agreement.

## **2. DEFINITIONS**

- 2.1. “**Confidential Information**” includes all information provided by the Disclosing Party, whether oral, written, digital, graphic, or otherwise, including: business plans, buyer lists, prices, model contracts (SCO, FCO, SPA), LOIs, technical data (assays, lab results), stock records, coordinates, videos, legal documentation, financial data, know-how, and any information marked or understood as confidential.
- 2.2. “**Authorized Representatives**”: employees or advisors of the Receiver who need to know the information and are bound to confidentiality.
- 2.3. “**Technical Package**”: documents described in Annex A.

 [info@minerglobalconnect.com](mailto:info@minerglobalconnect.com) |  <http://www.minerglobalconnect.com> |  [+56 9 8891 2564](tel:+56988912564) |

### 3. OBLIGATIONS OF THE RECEIVER

- 3.1. Use the Confidential Information solely for the Purpose.
- 3.2. Maintain strict confidentiality and disclose only to Authorized Representatives.
- 3.3. Apply security measures equivalent to its own confidential information.
- 3.4. Not use Confidential Information to bypass the Disclosing Party or negotiate directly with introduced contacts (non-circumvention).
- 3.5. Ensure Authorized Representatives comply with confidentiality.
- 3.6. Notify any unauthorized disclosure and cooperate in mitigation.

### 4. EXCEPTIONS

Information is not confidential if:

- (a) it becomes public without breach;
- (b) it was already known lawfully;
- (c) received legally from a third party;
- (d) independently developed;
- (e) required by law (with prior notice to Disclosing Party).

### 5. NON-CIRCUMVENTION & NON-SOLICITATION

- 5.1. The Receiver shall not bypass or contact sellers, buyers, mandates, suppliers, or any party introduced by the Disclosing Party without written authorization, for **5 years**.
- 5.2. The Receiver shall not solicit employees of the Disclosing Party for **12 months**.

### 6. DURATION

Confidentiality remains valid for **5 years** after the last disclosure.  
Non-circumvention remains valid for **5 years**.

### 7. OWNERSHIP

Confidential Information remains property of the Disclosing Party.  
No licenses or rights are granted unless in writing.

### 8. RETURN / DESTRUCTION

Upon written request, the Receiver must return or destroy all Confidential Information and certify destruction.

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## 9. DIGITAL SECURITY

Information may be stored in a secure repository (Google Drive, Dropbox, etc.).  
Receiver agrees to two-factor authentication if requested.

## 10. LIABILITY

Receiver is responsible for any misuse or unauthorized disclosure.

## 11. LIMITATION OF LIABILITY

No indirect damages or lost profits, except in cases of intentional breach.

## 12. NOTICE OF NON-COMPLIANCE

Receiver must notify the Disclosing Party if third-party information appears to match Confidential Information.

## 13. GENERAL PROVISIONS

13.1. **Governing Law:** Chile.

Disputes shall be resolved through **International Arbitration** (ICC or similar).

13.2. **Notifications:**

- Disclosing Party: \_\_\_\_\_
- MGC: robinson.godoy@minerglobalconnect.com

13.3. Assignment only with written consent.

13.4. Invalid clauses shall not affect the remaining provisions.

13.5. Entire agreement supersedes previous ones.

13.6. Amendments only in writing.

## 14. ANNEX A — Technical Package

May include:

SCO, LOI, assays, SGS/Mitra/Intertek reports, stockpile videos & photos, coordinates, export permits, certificates of origin, BL history, corporate documents, mandate letters, etc.

## 15. SIGNATURES

### By the Disclosing Party: TIGER PLANT MINING (PTY) LTD

Name: Nagesh Moothilal

Position: CEO

Signature: \_\_\_\_\_

Date: 20-11-2025

### By Miner Global Connect SpA (MGC):

Name: Robinson Sixto Godoy Cuchacovich

Position: CEO

Date: 20-11-2025

Signature:

